

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CHE WADE,

Index No.:

Plaintiff,

– against –

COMPLAINT

CITY OF NEW YORK, ORLEN ZAMBRANO, MICHAEL
WEBER, MICHAEL PARKS, and JOHN DOES 1-5,

Defendants.

Plaintiff Che Wade, by his attorneys, Mark A. Marino, PC, for his Complaint against Defendant City of New York, Defendant Orlen Zambrano, Defendant Michael Weber, Defendant Michael Parks, and Defendant John Does 1-5, alleges as follows, upon personal knowledge and upon information and belief:

PARTIES

1. Plaintiff Che Wade (“Plaintiff”) was, at the time of the incidents giving rise to this action, a resident of Kings County, State of New York.

2. Defendant City of New York is, and was at the time of the incidents giving rise to this action, a municipal corporation duly organized under, and existing by virtue of, the laws of the State of New York.

3. Defendant Orlen Zambrano is, and was at the time of the incidents giving rise to this action, a detective employed by the New York City Police Department (the “NYPD”) and working in the Narcotics Bureau (Queens North) with Shield No. 2727 – and thus employed by Defendant City of New York (“Zambrano”).

4. At the time of the incidents giving rise to this action, Defendant Zambrano was acting within the scope of employment.

5. At the time of the incidents giving rise to this action, Defendant Zambrano was acting under color of state law.

6. Defendant Michael Weber is, and was at the time of the incidents giving rise to this action, a detective or sergeant employed by the NYPD and working in the Narcotics Bureau (Brooklyn North) with Shield No. 4578 – and thus employed by Defendant City of New York (“Weber”).

7. At the time of the incidents giving rise to this action, Defendant Weber was acting within the scope of employment.

8. At the time of the incidents giving rise to this action, Defendant Weber was acting under color of state law.

9. Defendant Michael Parks is, and was at the time of the incidents giving rise to this action, a detective employed by the NYPD and working in the Narcotics Bureau (Brooklyn North) with Shield No. 1790 – and thus employed by Defendant City of New York (“Parks”).

10. At the time of the incidents giving rise to this action, Defendant Parks was acting within the scope of employment.

11. At the time of the incidents giving rise to this action, Defendant Parks was acting under color of state law.

12. Defendant John Does 1-5 are, and were at the time of the incidents giving rise to this action, members of the service (and employees) of the NYPD – and thus employed by Defendant City of New York (“John Does”).

13. At the time of the incidents giving rise to this action, Defendant John Does were acting within the scope of employment.

14. At the time of the incidents giving rise to this action, Defendant John Does were acting under color of state law.

15. The identities of Defendant John Does will become apparent during this litigation.

16. Upon information and belief, Defendant Zambrano was the arresting officer and is referred to herein as “Defendant Zambrano” or the “Arresting Officer.” If another individual is discovered to be the arresting officer, this Complaint shall be amended to name that individual as the “Arresting Officer.”

17. Upon information and belief, Defendant Zambrano was the officer who used excessive force against, assaulted, and battered Plaintiff and is referred to herein as “Defendant Zambrano” or the “Assaulting Officer.” If another individual is discovered to be the Assaulting Officer, the Complaint shall be amended to name that individual as the “Assaulting Officer.”

18. Defendant Zambrano, Defendant Weber, Defendant Parks, and Defendant John Does are referred to herein, collectively, as the “Individual Defendants.”

19. Defendant City of New York, Defendant Zambrano, Defendant Weber, Defendant Parks, and Defendant John Does are referred to herein, collectively, as “Defendants.”

JURISDICTION AND VENUE

20. This Court has jurisdiction over the parties pursuant to New York’s Civil Practice Law and Rules (“CPLR”) §301.

21. Venue in this county is proper pursuant to CPLR §503 and §504(3), as the incidents giving rise to this action occurred in this county and Plaintiff resided in this county at the time of the incidents giving rise to this action.

22. Plaintiff demands judgment against Defendants in an amount exceeding the jurisdiction of all lower courts.

FACTUAL ALLEGATIONS

23. On November 17, 2012, Defendant Zambrano and one of the other Individual Defendants, both in plainclothes, approached and stopped Plaintiff at or about the corner of Quincy Street and Nostrand Avenue in Kings County.

24. Defendant Zambrano snapped and bent Plaintiff's right wrist back and brought him against a car, where one of the other Individual Defendants handcuffed Plaintiff.

25. Defendant Zambrano began to search Plaintiff while still jamming and bending his wrist back.

26. Plaintiff felt that the search was unreasonably intrusive around his testicles and verbally protested the search.

27. Plaintiff did not resist arrest at any time.

28. Plaintiff did not attempt to flee at any time.

29. Plaintiff did not injure any of the Individual Defendants during the arrest.

30. Plaintiff did not attempt to injure any of the Individual Defendants during the arrest.

31. Plaintiff was not a threat to any of the Individual Defendants during the arrest.

32. Plaintiff did not injure any citizens during the arrest.

33. Plaintiff did not attempt to injure any citizens during the arrest.

34. Plaintiff was not a threat to any citizens during the arrest.

35. After Plaintiff's verbal protest, the Assaulting Officer swung his arm back and brought the open palm of his hand up from under (and between) Plaintiff's legs and slammed it into Plaintiff's testicles three times with full force.

36. The Assaulting Officer had continuously jammed Plaintiff's wrist while hitting him three times in the testicles.

37. After getting hit in the testicles three times, Plaintiff got dizzy and fell onto the car, breaking the passenger-side mirror with his chest.

38. Plaintiff was on the ground, still handcuffed, at this time.

39. Plaintiff, who is a production assistant, had a legal knife in his pocket (which was confiscated by one of the Individual Defendants).

40. The Individual Defendants knew the knife was legal.

41. The Individual Defendants were deliberately indifferent to whether the knife was legal.

42. One or more of the Individual Defendants put Plaintiff into a paddy wagon.

43. A police officer eventually came into the paddy wagon and told the Individual Defendants that Plaintiff did not fit the profile of the man for whom the Individual Defendants were looking.

44. Plaintiff was nevertheless taken to the 79th Precinct, where he was fingerprinted and photographed even though he did not fit the profile of the man for whom the Individual Defendants were looking.

45. A police officer eventually took Plaintiff to the hospital, where he complained about injuries to his wrist, chest, and testicles.

46. Plaintiff's feeling in his testicles alternated between numbness, tingling, sharp pain, and excruciating dull pain for days after the arrest.

47. Plaintiff still has frequent numbness in his right hand and fingers.

48. Plaintiff suffers from anxiety and has panic attacks since the incidents giving rise to this action.

49. Plaintiff was in custody for two days before seeing a judge.

50. Plaintiff was charged with criminal possession of a weapon based upon the affidavit written by the Arresting Officer.

51. Plaintiff was charged with resisting arrest based upon the affidavit written by the Arresting Officer.

52. The district attorney's office dropped all charges against Plaintiff.

DEMAND FOR JURY TRIAL

53. Plaintiff demands a trial by jury.

FIRST CAUSE OF ACTION VIOLATION OF 42 U.S.C. 1983 – FALSE ARREST As Against the Individual Defendants

54. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 53, inclusive, as though fully set forth herein.

55. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiff has the right to be free from unreasonable and illegal searches and seizures, including a false arrest.

56. One or more of the Individual Defendants, including, but not limited to, the Arresting Officer, violated Plaintiff's rights when he/she/they intentionally arrested and confined Plaintiff, who was conscious at the time, without consent, justification, privilege, or probable cause.

57. The actions of one or more of the Individual Defendants, including, but not limited to, the Arresting Officer, caused injuries to Plaintiff, including a loss of freedom and physical and psychological injuries, among other things.

58. One or more of the Individual Defendants, including, but not limited to, the Arresting Officer, took the aforementioned actions against Plaintiff during the course, and within the scope, of employment with the NYPD and Defendant City of New York.

59. One or more of the Individual Defendants, including, but not limited to, the Arresting Officer, was acting under color of state law at all times during the incidents giving rise to this action.

60. The actions taken by one or more of the Individual Defendants, including, but not limited to, the Arresting Officer, against Plaintiff were willful, wanton, reckless, and/or malicious, and thus entitle Plaintiff to punitive damages in an amount to be determined at trial.

SECOND CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – FALSE IMPRISONMENT
As Against the Individual Defendants

61. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 60, inclusive, as though fully set forth herein.

62. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiff has the right to be free from unreasonable and illegal searches and seizures, including false imprisonment.

63. One or more of the Individual Defendants, including, but not limited to, the Arresting Officer, violated Plaintiff's rights when he/she/they intentionally confined Plaintiff, who was conscious at the time, without consent, justification, privilege, or probable cause.

64. The actions of one or more of the Individual Defendants, including, but not limited to, the Arresting Officer, caused injuries to Plaintiff, including a loss of freedom and physical and psychological injuries, among other things.

65. One or more of the Individual Defendants, including, but not limited to, the Arresting Officer, took the aforementioned actions against Plaintiff during the course, and within the scope, of employment with the NYPD and Defendant City of New York.

66. The Individual Defendants were acting under color of state law at all times during the incidents giving rise to this action.

67. The actions taken by one or more of the Individual Defendants, including, but not limited to, the Arresting Officer, against Plaintiff were willful, wanton, reckless, and/or malicious, and thus entitle Plaintiff to punitive damages in an amount to be determined at trial.

THIRD CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – USE OF EXCESSIVE FORCE
As Against the Assaulting Officer

68. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 67, inclusive, as though fully set forth herein.

69. Plaintiff has the right, pursuant to the United States Constitution and the Fourth and Fourteenth Amendments thereto, to be free from brutal police conduct and the application of undue or excessive force during the course of an arrest (and after the arrest) by those acting under color of state law.

70. The Assaulting Officer violated Plaintiff's constitutional rights when he jerked Plaintiff's wrist back and punched Plaintiff in the testicles three times while Plaintiff was handcuffed, among other things.

71. The actions of the Assaulting Officer caused injuries to Plaintiff, including a loss of freedom and physical and psychological injuries, among other things.

72. The Assaulting Officer was acting under color of state law at all times during the incidents giving rise to this action.

73. The actions taken by the Assaulting Officer against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FOURTH CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – FAILURE TO INTERVENE
As Against the Individual Defendants

74. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 73, inclusive, as though fully set forth herein.

75. Under the Constitution of the United States of America and 42 U.S.C. 1983, police officers have an affirmative duty to protect the constitutional rights of citizens by intervening when other police officers commit constitutional violations in their presence.

76. At the time of the incidents giving rise to this action, the Individual Defendants violated Plaintiff's constitutional rights when, in their presence, Plaintiff was unlawfully arrested, detained, and imprisoned, yet the Individual Defendants did not intervene to protect Plaintiff.

77. The (in)actions of the Individual Defendants caused injuries to Plaintiff, including a loss of freedom and physical and psychological injuries, among other things.

78. At the time of the incidents giving rise to this action, the Individual Defendants violated Plaintiff's constitutional rights when, in their presence, Plaintiff was subject to excessive force, assaulted, and battered, yet the Individual Defendants did not intervene to protect Plaintiff.

79. The (in)actions of the Individual Defendants caused injuries to Plaintiff, including a loss of freedom and physical and psychological injuries, among other things.

80. The Individual Defendants were acting under color of state law at all times during the incidents giving rise to this action.

81. The (in)actions taken by the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FIFTH CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – MUNICIPAL LIABILITY
As Against Defendant City of New York

82. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 81, inclusive, as though fully set forth herein.

83. The members of the NYPD have a policy of physically abusing arrestees who speak out about the way they are being frisked.

84. The members of the NYPD have a policy of arresting anyone found carrying a knife with no regard for whether the knife is legal.

85. The members of the NYPD have a policy of suggesting charges of resisting arrest to the district attorney every time an arrestee speaks out about the way he or she is arrested, regardless of whether the citizen actually resisted being arrested.

86. The aforementioned policies and procedures, written and/or so widely established so as to have the effect of written policy, adopted by Defendant City of New York, in existence at the time of the incidents giving rise to this action, violated federal law on their face or were intended to deprive citizens of their constitutional rights.

87. The foregoing policies or practices are unconstitutional.

88. Defendant City of New York has shown a deliberate indifference towards citizens with respect to the foregoing unconstitutional policies.

89. The aforementioned actions of the Individual Defendants resulted from, and were taken pursuant to, the above-mentioned *de facto* policies and/or well-settled and widespread customs and practices of Defendant City of New York, which are implemented by members of the NYPD.

90. Plaintiff sustained injuries as a result of Defendant City of New York's unconstitutional policies.

91. Defendant City of New York is liable and responsible for all injuries resulting from its deliberate indifference to these unconstitutional practices.

SIXTH CAUSE OF ACTION **ASSAULT**

92. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 91, inclusive, as though fully set forth herein.

93. The Individual Defendants, including but not limited to, the Assaulting Officer, intentionally placed Plaintiff in apprehension or fear of imminent harmful, offensive conduct, and unwanted contact, without justification or privilege.

94. The actions taken by the Individual Defendants, including but not limited to, the Assaulting Officer, caused injuries to Plaintiff, including physical injuries, emotional injuries, loss of freedom, and past and future medical expenses, among other things.

95. The Individual Defendants, including but not limited to, the Assaulting Officer, took the aforementioned actions against Plaintiff during the course, and within the scope, of employment by the NYPD and the City of New York.

96. The aforementioned actions taken by the Individual Defendants, including but not limited to, the Assaulting Officer, against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

97. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

SEVENTH CAUSE OF ACTION
BATTERY

98. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 97, inclusive, as though fully set forth herein.

99. The Individual Defendants, including but not limited to, the Assaulting Officer, intentionally initiated wrongful and excessive physical contact with Plaintiff by beating Plaintiff without consent, justification, or privilege.

100. The actions of the Individual Defendants, including but not limited to, the Assaulting Officer, caused injuries to Plaintiff, including physical injuries, emotional injuries, loss of freedom, and past and future medical expenses, among other things.

101. The Individual Defendants, including but not limited to, the Assaulting Officer, took the aforementioned actions against Plaintiff during the course, and within the scope, of employment by the NYPD and Defendant City of New York.

102. The aforementioned actions taken the Individual Defendants, including but not limited to, the Assaulting Officer, against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

103. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, the Assaulting Officer, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

EIGHTH CLAIM FOR RELIEF
NEGLIGENT TRAINING AND SUPERVISION

104. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 103, inclusive, as though fully set forth herein.

105. Defendant City of New York has a duty to train and supervise its police force with respect to the proper way to conduct a non-intrusive search.

106. Defendant City of New York knew or should have known that the Assaulting Officer had (and has) a propensity for performing unconstitutionally intrusive searches on individuals.

107. Defendant City of New York has a duty to train and supervise its police force with respect to refraining from striking individuals while they are handcuffed.

108. Defendant City of New York knew or should have known that the Assaulting Officer had (and has) a propensity for striking individuals while they are handcuffed.

109. Defendant City of New York breached its aforementioned duties.

110. The breaches of the aforementioned duties of (and by) Defendant City of New York caused Plaintiff to sustain injuries.

111. Defendant City of New York is liable for the acts of its agents/employees, including the Individual Defendants, taken against Plaintiffs during the course, and within the scope, of employment by Defendant City of New York under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff Che Wade respectfully requests that this Court enter Judgment in his favor and against Defendants as follows:

- a. compensatory and punitive damages as against Defendants, jointly and severally, in an amount to be determined at trial;
- b. attorney's fees incurred during this action, pursuant to 42 U.S.C. 1988(b), the determination of which lies within the sound discretion of this Court;
- c. attorney's fees and costs available by any applicable state or federal law;
- d. costs incurred during this action, pursuant to 42 U.S.C. 1988(b), the determination of which lies within the sound discretion of this Court;
- e. expert fees incurred during this action, pursuant to 42 U.S.C. 1988(c), the determination of which lies within the sound discretion of this Court;
- f. statutory interest on any sums awarded to Plaintiff; and
- g. such other and further relief as the Court deems proper and fair.

Dated: New York, New York
June 30, 2014

Respectfully submitted,

MARK A. MARINO, PC



Mark A. Marino
Attorney for Plaintiff Che Wade
380 Lexington Avenue, 17th Floor
New York, New York 10168
Tel: 212.748.9552
Fax: 646.219.5350